

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

- - - - -X
ALEX STEWART,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE EVERTON SMITH,
SERGEANT MICHAEL O'SULLIVAN, JOHN/JANE DOE
POLICE OFFICERS OF THE 67TH PRECINCT,

Defendants.

- - - - -X
S I R S:

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
December 11, 2019

MICHAEL B. PALILLO, P.C.
Attorneys for Plaintiff
277 Broadway, Suite 501
New York, New York 10007-2001
(212) 608-8959

Index No.:

Date Purchased:

SUMMONS

The Plaintiffs designates
KINGS COUNTY as Place of
Trial

The Basis of Venue is
Plaintiff's residence.

Plaintiff resides at 243 East
51st Street, Brooklyn, NY

Defendants' Addresses:

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK NEW YORK

THE NEW YORK CITY POLICE DEPARTMENT
100 CHURCH STREET
NEW YORK, NEW YORK

SERGEANT MICHAEL O'SULLIVAN
C/O 67th Pct
2820 SNYDER AVENUE BROOKLYN NEW YORK

DETECTIVE EVERTON SMITH
C/O 67th Pct
2820 SNYDER AVENUE BROOKLYN NEW YORK

P.O. JOHN/JANE DOE,
C/O 67th Pct.
2820 SNYDER AVENUE BROOKLYN NEW YORK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

- - - - -X

ALEX STEWART,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE EVERTON SMITH,
SERGEANT MICHAEL O'SULLIVAN, JOHN/JANE DOE
POLICE OFFICERS OF THE 67TH PRECINCT,

Defendants.

- - - - -X

S I R S:

Plaintiffs, ALEX STEWART by their attorney, MICHAEL B. PALILLO, ESQ.,
complaining of the Defendants herein, alleges upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ALEX STEWART

1. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiffs under the Constitution and Laws of the United States of America and the State of New York. The Defendants unreasonably seized the person of Plaintiff ALEX STEWART, committed assault, battery, subjected him to degrading and humiliating searches of his body without a warrant, arrested him, held him against his will, false imprisoned him all without probable cause and maliciously prosecuted him.

2. That at all times herein mentioned, Plaintiff ALEX STEWART was and still is a resident of the State of New York, County of Kings, United States of America.

3. That at all times mentioned herein, THE CITY OF NEW YORK, hereinafter "CITY" was and still is a municipal Corporation existing and organized by virtue of the Laws of the State of New York.

4. At all times mentioned herein, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or agency of the CITY OF NEW YORK and operates under its supervision, management and control.

5. At all times mentioned herein, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or agency of the CITY OF NEW YORK and operates under its supervision, management and control.

6. That at all dates and times hereinafter mentioned, DETECTIVE EVERTON SMITH, was assigned to the 67th pct. and acted within the scope of his employment.

7. That at all dates and times hereinafter mentioned, SERGEANT MICHAEL O'SULLIVAN, was assigned to the 67th pct. and acted within the scope of his employment.

8. That at all dates and times hereinafter mentioned, police officers, "JOHN DOE" and "JANE DOE" names fictitious true names unknown but intended to be designated police officers at the time and place of this occurrence were employees of the "NYCPD", and in particular the 67th pct. and acted within the scope of their employment as such.

9. That a Notice of Claim was duly presented to the City of New York Office of the Comptroller of the City of New York on behalf of ALEX STEWART on the 29th day of March, 2019, which was within ninety (90) days of the cause of action accrued herein.

10. That the CITY has demanded a hearing, pursuant to §50-H of the General Municipal Law, and a hearing was held on October 28, 2019. Said claim has been presented for adjustment/payment and no adjustment or payment has been had. This action has been brought within one year and ninety (90) days of the happening of the event complained of.

11. That at all times herein mentioned, the Defendant was acting under color of law, that is, under color of the Constitution, statutes, laws, rules, regulations, customs and usages of the City and State of New York.

12. That at all times herein mentioned, the Defendants, and each of them, separately and in concert with each other engaged in acts and omissions which constituted deprivation of the rights, privileges and immunities of the Plaintiff and while these acts were carried out under color of law, they had no justification or excuse in law, and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or insuring Civil order.

13. That at all times mentioned herein, each of the Defendants had the power and duty to restrain the other Defendants and prevent them from violating the law and rights of the Plaintiff, ALEX STEWART, but that each of the Defendants failed and refused to perform that duty, failed and refused to restrain the other Defendants, and thereby became party to the injuries inflicted upon Plaintiff.

14. That at all dates and times hereinafter mentioned, the Plaintiff, ALEX STEWART, was lawfully inside the basement of the premises 243 East 51st Street, County of Kings, State of New York.

15. That on December 27, 2018, a no-knock search warrant was issued permitting the NYPD to only enter into the front apartment located on the first floor of 243 East 51st Street, County of Kings, State of New York.

16. On or about Saturday, January 5, 2019 at approximately 8:30 a.m. – 9:15 a.m. DETECTIVE EVERTON SMITH, SERGEANT MICHAEL O’SULLIVAN, and unidentified police officers “JOHN DOES” and “JANE DOES” name fictitious true name unknown intended to be police officers designated at the above premises and without conducting an investigation into the validity of any complaint or alleged investigation, entered into the basement of 243 East 51st Street, County of Kings, State of New York and falsely arrested and unlawfully imprisoned Plaintiff, ALEX STEWART.

17. That on the aforementioned date, Plaintiff, ALEX STEWART, was inside the aforementioned basement cleaning.

18. At the aforementioned date, police officers dressed in riot gear suddenly stormed into the basement and started verbally assaulting and cursing at ALEX STEWART.

19. A police officer then grabbed ALEX STEWART and violently threw him onto the floor and ripped his tee shirt.

20. ALEX STEWART was placed in handcuffs, searched, arrested and unlawfully imprisoned by the agents, servants and/or employees of the CITY OF NEW YORK, the "NYPD" and in particular DETECTIVE EVERTON SMITH, SERGEANT MICHAEL O'SULLIVAN and other police officer of the 67th Pct. identified as "JOHN DOE" and "JANE DOE" names fictitious, true names unknown but intended to be police officers at the aforementioned premises making this arrest.

21. At the aforementioned date, time and place, ALEX STEWART was falsely arrested and unlawful imprisoned by the agents servants and /or employers of the N.Y.C. Police Department, including but not limited to SERGEANT MICHAEL O'SULLIVAN, DETECTIVE EVERTON SMITH and other police officer of the 67th Pct. identified as "JOHN DOE" and "JANE DOE" names fictitious, true names unknown but intended to be police officers when he was placed in hand cuffs and arrested, held in the basement of 243 East 51st Street, County of Kings, State of New York for approximately five (5) minutes, then walked to the sidewalk in front of 243 East 51st Street, County of Kings, State of New York where he was placed in a NYPD van and where he was held in handcuffs behind his back for an additional two (2) minutes, and then driven to the 67th pct. in handcuffs which took approximately ten (10) minutes, photographed, fingerprinted, placed in a holding cell until approximately 3:15 PM, when he was again placed into a NYPD van and driven to central booking which took approximately twenty

(20) minutes, and at approximately 12:30 PM he appeared before a Criminal Court Judge and charged with:

- ABC 100 (1) SALE OF ALCOHOL WITHOUT A LICENSE;
- ABC 64 (B) UNLICENSED BOTTLE CLUB;
- ABC 96 (1) STORING ALCOHOLIC BEVERAGES.

22. At no time did ALEX STEWART resist or attempt to resist the officers attempts to place handcuffs on him, the officers placing him into a NYPD van, or the officers transporting him to the 67th pct., placing him into custody and/or arresting him.

23. ALEX STEWART was aware of his confinement, did not consent to his confinement, the placing of hands onto his person, being searched and handcuffed and his arrest was not otherwise privileged.

24. Upon information and belief, no facts existed which would give rise to an inference that ALEX STEWART committed the crimes he was charged or that ALEX STEWART should have been arrested.

25. ALEX STEWART was required to appear in the Criminal Court Kings County on the following dates:

- January 6, 2019 for arraignment;
- February 15, 2019;
- March 27, 2019;
- May 7, 2019;
- June 10, 2019;
- July 15, 2019;
- August 1, 2019;
- August 15, 2019;

- September 9, 2019;
- September 20, 2019.

26. On September 20, 2019, all charges against ALEX STEWART were dismissed in the interest of justice and the record sealed.

27. The injuries ALEX STEWART was caused to endure, included but are not limited to scorn and ridicule by being placed in handcuffs, paraded in handcuffs, assaulted, subject to battery, having hands placed on his body without his consent, falsely arrested as well serious injuries the full extent of which are not fully known due to his unlawful imprisonment and false arrest.

28. That due to the actions of the CITY OF NEW YORK and the "NYPD", their agents, servants and/or employees including but not limited to SERGEANT MICHAEL O'SULLIVAN, DETECTIVE EVERTON SMITH and officers "JOHN DOE" and "JANE DOES" of the 67th pct. ALEX STEWART suffered physical injuries, stress upon his physical system, psychological/emotional injury and anxiety, for which THE CITY OF NEW YORK refused to adjust upon repeated requests to do so and damages the full extent of which is not known at this time, for which he was required to and will be required to seek health care in the future.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ALEX STEWART

29. Plaintiff, ALEX STEWART, repeats, reiterates and realleges each and every allegation previously set forth herein with the same force and effect as though each were fully set forth at length herein.

30. That at the aforementioned date, time and place the agents, servants and/or employees of the CITY and NYCPD, as previously set forth, without just cause or provocation,

intentionally and maliciously assaulted, battered, threatened, pushed and shoved the Plaintiff ALEX STEWART.

31. The aforesaid searches, detention and arrest of Plaintiff, ALEX STEWART constituted unreasonable and excessive force by the CITY and NYCPD as identified above.

32. Plaintiff ALEX STEWART was deprived of his freedom for a substantial period of time, suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer from mental and emotional distress as a result of the aforesaid unlawful conduct of the Defendants and has been caused to fear repetition of the unlawful conduct by the Defendants or by other police officers.

33. In the manner aforesaid, each of the Defendants, jointly and severally, acted maliciously, willfully and wantonly, and outside the scope of their jurisdiction, although under color of law, violated the following rights of the Plaintiff ALEX STEWART:

- a. To be free from unreasonable search and seizure;
- b. To be free from search and seizure without probable cause;
- c. To be free from unlawful detainment and arrest;
- d. To be free from assault and battery;
- e. To be free from negligence in the performance of police duties;
- f. To be free from summary punishment without trial;
- g. Due process of law.

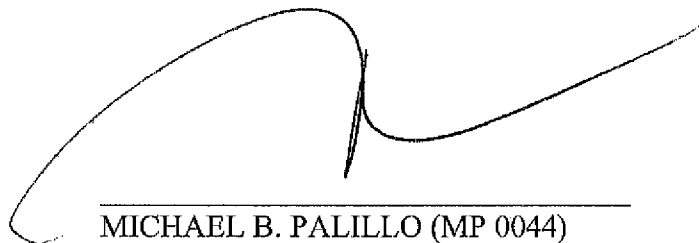
34. All of these rights are secured to the Plaintiff ALEX STEWART by the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States of

America, and by 42 U.S.C. Sections 1983 and 1988, and by the Statutes and Laws of the State of New York which are invoked under the jurisdiction of this Court.

35. That solely by reason of all the foregoing, Plaintiff ALEX STEWART and has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

WHEREFORE, Plaintiff ALEX STEWART, demands judgment against the Defendants in a sum which exceeds the jurisdictional limitations of this Court, together with the costs and disbursements of this action, and for such other and further relief as to this Court deems just proper and equitable.

Dated: New York, New York
December 11, 2019



MICHAEL B. PALILLO (MP 0044)
MICHAEL B. PALILLO, P.C.
Attorney for Plaintiff
277 Broadway, Suite 501
New York, NY 10007
(212) 608-8959

Michael B. Palillo, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following under penalties of perjury:

I am the attorney for the Plaintiff(s) in the above captioned matter. I have read the foregoing Summons and Verified Complaint and know the contents thereof; the same is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true based on a review of the files maintained in this office and conversations had with the Plaintiff(s). The reason why this verification is made by the undersigned attorney rather than the Plaintiff(s) is that the Plaintiff(s) do/does not reside in the County where I maintain my office for the practice of law.

Dated: New York, New York
December 11, 2019



Michael B. Palillo

DESIGNATION OF AGENT FOR ACCESS TO SEALED
RECORDS PURSUANT TO NYCPL §160.50[1][d]

I, Alex Stewart, Date of Birth [REDACTED],
SS# [REDACTED], pursuant to CPL §160.50[1][d], hereby designate
The Corporation Counsel, or his authorized
representative, as my agent to whom records of the criminal action terminated in my favor
entitled The People of the State of New York v. Alex Stewart, Docket No.
or Indictment No. [REDACTED], in Criminal Court, County of
Kings, State of New York, relating to my arrest on or about [REDACTED],
may be made available.

I understand that until now the aforesaid records have been sealed pursuant to CPL
§160.50, which permits those records to be made available only (1) to persons designated by me,
or (2) to certain other parties specifically designated in that statute.

I further understand that the person designated by me above as a person to whom the
records may be made available is not bound by the statutory sealing requirements of CPL
§160.50.

The records to be made available to the person designated above comprise all records and
papers relating to my arrest and prosecution in the criminal action identified herein on file with
any court, police agency, prosecutor's office, or state or local agency that were ordered to be
sealed under the provisions of CPL §160.50.

Alex Stewart

STATE OF NEW YORK)
COUNTY OF NY) ss.

On this 16 day of Dec, 2019, before me personally came Alex Stewart
to me known and known to me to be the individual described in and who executed the foregoing
instrument, and he acknowledged to me that he executed the same.

[Signature]
NOTARY PUBLIC

Notary Public, State of New York
No. 029490450
Qualified to Perform in County
Commenced Expiration

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALEX STEWART,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE EVERTON SMITH,
SERGEANT MICHAEL O'SULLIVAN, JOHN/JANE DOE
POLICE OFFICERS OF THE 67TH PRECINCT,

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

Michael B. Palillo P.C.
Attorneys for Plaintiff(s)
Office and Post Office Address:

277 Broadway, Suite 501

New York, NY 10007

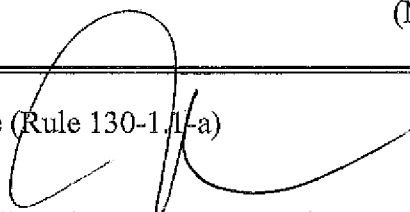
(212) 608-8959

(212) 608-0304 Fax (Not for Service)

MPalillo@PalilloLaw.com

(Not for Service)

Signature (Rule 130-1.1-a)


MICHAEL B. PALILLO, ESQ.